

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BUKHTENKO AND OTHERS v. RUSSIA

(Applications nos. 63772/17 and 49 others –
see appended list)

JUDGMENT

STRASBOURG

18 January 2024

This judgment is final but it may be subject to editorial revision.



In the case of Bukhtenko and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention or Protocols to it.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-67, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under

the Code of Administrative Offences; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under the Convention or Protocols to it. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Péter Paczolay President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	63772/17 18/08/2017	**Mikhail Vladimirovich BUKHTENKO** 1995	Popkov Aleksandr Vasilyevich Sochi	Anticorruption rally Krasnodar, 26/03/2017	article 19.3 § 1 of CAO	10 days of detention	Krasnodar Regional Court 06/04/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
2.	63782/17 18/08/2017	**Biyslan Murdinovich ZHANE** 1994	Popkov Aleksandr Vasilyevich Sochi	Anticorruption rally Krasnodar, 26/03/2017	article 19.3 § 1 of CAO	10 days of detention	Krasnodar Regional Court 06/04/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
3.	68068/17 11/09/2017	**Natalya Vladimirovna GRYAZNEVICH** 1989	Golubok Sergey Aleksandrovich Vilnius	Political event St Petersburg, 29/04/2017	article 19.3 § 1 of CAO article 20.2 § 5 of CAO	fine of RUB 800 fine of RUB 10,000	St Petersburg City Court 30/05/2017 St Petersburg City Court 20/06/2017	Art. 5 (1) - unlawful detention - on 29-30/04/2017 escorting to and detention in a police station for and after compiling an offence report.	4,000

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4.	70548/17 21/09/2017	**Dmitriy Nikolayevich DOROGOV** 1981		Anticorruption rally Moscow, 26/03/2017	article 19.3 § 1 of CAO	10 days of detention	Moscow City Court 18/04/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
5.	6456/18 10/01/2018	**Yelena Aleksandrovna CHEBOTAREVA** 1988	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg, 12/06/2017	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 10,000 and 1 day of detention	St Petersburg City Court 11/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	4,000
6.	8422/18 12/01/2018	**Aleksandr Vladimirovich STRELTSOV** 1970	Peredruk Aleksandr Dmitriyevich St Petersburg	Anticorruption rally St Petersburg, 12/06/2017	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 13/07/2017	Art. 5 (1) - unlawful detention - on 12-13/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	21532/18 20/04/2018	**Mikhail Borisovich KASIMOV** 1961		Opposition rally Perm, 07/10/2017	Article 20.2 § 8 of CAO	60 hours of community work	Perm Regional Court 24/11/2017		3,500
8.	51147/18 10/10/2018	**Natalya Romanovna SINYAKOVA** 1997	Zhdanov Ivan Yuryevich Vilnius	Opposition rally St Petersburg, 28/01/2018	article 20.2 § 8 of CAO article 19.3 § 1 of CAO	5 days of detention 4 days of detention	St Petersburg City Court 22/05/2018 St Petersburg City Court 22/05/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	5,000

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9.	54372/18 26/10/2018	**Yegor Andreyevich KOMAROV** 1999	Peredruk Aleksandr Dmitriyevich St Petersburg	Opposition rally St Petersburg, 05/05/2018	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 10,000 5 days of detention	St Petersburg City Court 29/05/2018 St Petersburg City Court 29/05/2018	Art. 5 (1) - unlawful detention - on 05/05/2018 escorting to a police station for compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	5,000
10.	54913/18 31/10/2018	**Igor Gennadyevich STARUN** 1998	Cherkasov Vitaliy Viktorovich St Petersburg	Opposition rally St Petersburg, 05/05/2018	article 20.2 § 5 of CAO article 19.3 § 1 of CAO	fine of RUB 10,000 5 days of detention	St Petersburg City Court 29/05/2018 St Petersburg City Court 29/05/2018	Art. 5 (1) - unlawful detention - on 05/05/2018 escorting to a police station for compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
11.	57676/18 22/11/2018	**Yana Olegovna GERASIMOVA** 1993	Vasin Vladimir Valeryevich Krasnoyarsk	Opposition rally Krasnoyarsk, 05/05/2018	article 20.2 § 2 of CAO	3 days of detention	Krasnoyarsk Regional Court 07/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
12.	58112/18 17/11/2018	**Nikita Valeryevich SHEVCHENKO** 1999	Benyash Mikhail Mikhaylovich Sochi	Opposition rally Krasnodar, 05/05/2018	article 20.2 § 8 of CAO	5 days of detention	Krasnodar Regional Court 18/05/2018		3,500

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13.	58765/18 04/12/2018	**Yaroslav Romanovich MUDRYAKOV** 1992	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition rally Cheboksary, 05/05/2018	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 31/05/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
14.	59648/18 06/12/2018	**Ruslan Sarkarovich LITOSH** 1996	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition rally Cheboksary, 05/05/2018	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	20 hours of community work 20 hours of community work	Supreme Court of the Chuvashia Republic 08/06/2018 Supreme Court of the Chuvashia Republic 07/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	3,500
15.	39557/21 29/07/2021	**Kirill Sergeyevich LYAPUNOV** 1996	Eysmont Mariya Olegovna Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 04/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
16.	40050/21 27/07/2021	**Aleksey Aleksandrovich FILATOV** 1981	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 04/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-02/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	5,000

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								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	
17.	40059/21 27/07/2021	**Aleksandr Gennadiyevich ZELENSKIY** 1986	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	15 days of detention	Moscow City Court 03/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
18.	40163/21 27/07/2021	**Andrey Mikhaylovich PRUDSKOY** 1995	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally to support A. Navalnyy Moscow, 02/02/2021	article 20.2 § 6.1 of CAO	7 days of detention	Moscow City Court 08/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
19.	40318/21 27/07/2021	**Aleksey Valeryevich KOMAROV** 1993	Shindyapin Arkadiy Vitalyevich Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	13 days of detention	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000

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20.	40446/21 19/07/2021	**Aleksandr Vladimirovich NAUMOV** 1999	Zatonskaya Yuliya Vladimirovna Lipetsk	Rally to support A. Navalnyy Lipetsk, 23/01/2021 Rally to support A. Navalnyy Lipetsk, 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 fine of RUB 75,000	Lipetsk Regional Court 11/03/2021 Lipetsk Regional Court 10/06/2021	Art. 5 (1) - unlawful detention - (i) on 23/01/2021 escorting to a police station for compiling an offence report and (ii) on 21-22/04/2021 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	4,850
21.	40500/21 28/07/2021	**Yuliya Yuryevna MOROZOVA** 1966	Bochilo Anna Yevgenyevna Barnaul	Rally to support A. Navalnyy Rostov-on-Don, 23/01/2021 Rally to support A. Navalnyy Rostov-on-Don, 31/01/2021	article 20.2 § 6.1 of CAO article 20.2 § 6.1 of CAO	7 days of detention 10 days of detention	Rostov Regional Court 15/02/2021 Rostov Regional Court 08/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to and detention in a police station for compiling an offence report and on 10/02/2021 (in relation to the rally on 23/01/2021), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentences of detention; an appeal against conviction had no suspensive effect.	5,000
22.	40662/21 25/07/2021	**Mariya Valeryevna TUROVETS** 1986	Mikhaylova Varvara Dmitriyevna St Petersburg	Rally to support A. Navalnyy Volgograd, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 24/02/2021	Art. 5 (1) - unlawful detention - on 23/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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23.	40819/21 21/07/2021	**Vladimir Borisovich ZVONOVSKIY** 1966	Krasikov Vladimir Vladimirovich Samara	Rally to support A. Navalnyy Samara, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Samara Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	41106/21 29/07/2021	**Konstantin Aleksandrovich BEREZA** 1985	Chashchilova Mariya Valeryevna Moscow	Rally to support A. Navalnyy Moscow, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 11/05/2021	Art. 5 (1) - unlawful detention - on 23-24/01/2021 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
25.	41200/21 01/08/2021	**Konstantin Valeryevich LIKHACHEV** 1993	Eysmont Mariya Olegovna Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	7 days of detention	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
26.	41464/21 31/07/2021	**Aleksey Mikhaylovich VOSKOBOYNIKOV** 1990	Eysmont Mariya Olegovna Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	5 days of detention	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000

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27.	41646/21 07/08/2021	**Dinislam Aleksandrovich SALIKHOV** 1989	Agagyulyan Ani Mesropovna Moscow	Rally to support A. Navalnyy Moscow, 02/02/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 09/02/2021	Art. 5 (1) - unlawful detention - on 02-04/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
28.	41675/21 06/08/2021	**Yevgeniy Aleksandrovich KOSTYUK** 1976	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	15 days of detention	Moscow City Court 12/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
29.	42474/21 05/08/2021	**Yevgeniy Andreyevich SYSOYEV** 1995	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	8 days of detention	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000

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30.	43000/21 23/08/2021	**Darya Sergeyevna SABAYEVA** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Yaroslavl, 23/01/2021 Rally to support A. Navalnyy Yaroslavl, 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Yaroslavl Regional Court 22/04/2021 Yaroslavl Regional Court 30/03/2021		3,500
31.	43142/21 12/08/2021	**Anatoliy Viktorovich KUTSENKOV** 1982	Zakhvatov Dmitriy Igorevich Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 8 of CAO	20 days of detention	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021- 01/02/2021 detention after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
32.	43184/21 11/08/2021	**Albina Ravisovna KUZNETSOVA** 1998	Nurgaleyev Danil Ilnurovich Kazan	Rally to support A. Navalnyy Kazan, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 07/04/2021	Art. 5 (1) - unlawful detention - on 30-31/01/2021 escorting to and detention in a police station for and after compiling an offence report in relation to the rally on 23/01/2021.	4,000
33.	43216/21 18/08/2021	**Ivan Sergeyevich YAKOVLEV** 2002	Pershakova Yelena Yuryevna Moscow	Rally to commemorate the anniversary of the revolution Perm, 07/11/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 02/03/2021	Art. 5 (1) - unlawful detention - on 07/11/2020 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
34.	43276/21 09/08/2021	**David Petrovich SHUSTOV** 1996	Zyryanova Mariya Sergeyevna St Petersburg	Rally to support A. Navalnyy St Petersburg, 23/01/2021	article 20.2 § 6.1 of CAO	2 days of detention	St Petersburg City Court 18/02/2021	Art. 5 (1) - unlawful detention - on 23-24/01/2021 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	5,000
35.	43497/21 12/08/2021	**Irina Alekseyevna RAY** 1968	MOO MEMORIAL Human Rights Centre St Petersburg	Rally to support A. Navalnyy Moscow, 02/02/2021	article 20.2 § 6.1 of CAO	8 days of detention	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful detention - on 02-03/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
36.	44199/21 26/08/2021	**Zhanna Vladimirovna LEVKINA** 1968	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally to support A. Navalnyy Kurgan, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kurgan Regional Court 17/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
37.	44391/21 26/08/2021	**Kseniya Aleksandrovna VOLKOVA** 1991	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally to support A. Navalnyy Kazan, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 17/03/2021		3,500

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38.	44588/21 09/08/2021	**Yuliya Dmitriyevna ILYUSHKINA** 1999	Karavayev Aleksandr Yevgenyevich Nizhniy Novgorod	Rally to support A. Navalnyy Moscow, 02/02/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 10/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
39.	45060/21 02/09/2021	**Anastasiya Aleksandrovna TALYKOVA** 2021	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally to support A. Navalnyy Kurgan, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kurgan Regional Court 17/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
40.	46957/21 20/09/2021	**Sergey Yuryevich SHUNIN** 1974	Valiyeva Elza Albertovna Nizhniy Novgorod	Rally to support A. Navalnyy Nizhniy Novgorod, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 11/08/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report.	4,000
41.	48927/21 24/09/2021	**Vasiliy Veniaminovich GRAUR** 1982		Rally to support A. Navalnyy Vladimir, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Vladimir Regional Court 30/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
42.	49283/21 22/09/2021	**Nikita Stanislavovich PAVLOVETS** 2001	Ivanova Tatyana Andreyevna Irkutsk	Rally to support A. Navalnyy Irkutsk, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Irkutsk Regional Court 17/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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43.	49471/21 01/10/2021	**Aleksandr Gennadyevich SHEYKIN** 1982	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Stavropol, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 07/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
44.	50215/21 23/09/2021	**Sergey Yuryevich BARANOV** 1982	Shchukin Andrey Yevgenyevcich Nizhniy Tagil	Rally to support A. Navalnyy Yekaterinburg, 21/04/2021	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 28/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
45.	50602/21 29/09/2021	**Viktoriya Pavlovna KAMENSKAYA** 1987	Dubrovina Marina Alekseyevna Novorossiysk	Rally to support A. Navalnyy Novorossiysk, 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 12,000	Krasnodar Regional Court 29/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
46.	51772/21 15/10/2021	**Andrey Viktorovich ZADERENKO** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Moscow, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 20/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
47.	51933/21 15/10/2021	**Aleksey Yuryevich DERYUSHEV** 1992	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Perm, 23/01/2021 Rally to support A. Navalnyy	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 15,000	Perm Regional Court 16/04/2021 Perm Regional Court 14/05/2021	Art. 5 (1) - unlawful detention - on 24/01/2021 and 31/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	4,000

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				Perm, 31/01/2021					
48.	51939/21 15/10/2021	**Artem Viktorovich RODIONOV** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Saransk, 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 5,000	Supreme Court of Mordovia Republic 28/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
49.	52463/21 24/09/2021	**Andrey Ashotovich SARKISYAN** 1989	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally to support A. Navalnyy Petropavlovsk-Kamchatskiy, 23/01/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	Kamchatka Regional Court 24/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
50.	52559/21 01/10/2021	**Oleg Sergeyevich SHATIN** 1997	Nurgaleyev Danil Ilnurovich Kazan	Rally to support A. Navalnyy Kazan, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 28/04/2021		3,500

[1] Plus any tax that may be chargeable to the applicants.